

HOW POST-2013 RESTRICTION WORKS, AND HOW TO READ YOUR CRIMINAL HISTORY

For: Maria-Alejandra O'Shaughnessy-Whitfield

WORDS FIRST. Georgia law does not use "expungement" and has not since July 1, 2013. The two remedies are RECORD RESTRICTION (limiting who may see criminal history record information held by the Georgia Crime Information Center) and, separately, SEALING (closing the clerk of court's file). Neither destroys the record. This packet is about restriction only.

HOW POST-2013 RESTRICTION WORKS. For an arrest on or after July 1, 2013 that ended in a qualifying non-conviction disposition, O.C.G.A. Sec. 35-3-37(h) says access to the arrest cycle SHALL be restricted. It is mandatory and automatic: the clerk, the arresting agency or the prosecuting attorney reports the qualifying disposition and the center restricts. There is no application, no petition, no statewide form and no fee for the restriction itself. (GBI's published restriction application is captioned "Prior to 07/01/2013" - it is the wrong instrument for this route, and the \$25.00 GCIC record restriction processing fee on the fee schedule effective January 1, 2025 belongs to that older route, not this one.)

STEP ONE - GET YOUR OWN GEORGIA CRIMINAL HISTORY. GBI's guidance says a Georgia criminal history record can be obtained from most sheriff's offices or police departments, that requirements vary by agency, and that the GCIC lobby office is by appointment only. Bring government photo identification and the agency's fee (local agency fees vary).

STEP TWO - READ IT, TWICE OVER. For each charge in the arrest cycle: does it show a FINAL DISPOSITION, and is the cycle already marked RESTRICTED?

- Already restricted: stop here. Nothing needs to be sent. The clerk of court's file and jail records are separate remedies on separate routes.
- Not restricted, disposition shown and qualifying: the written request in this packet is your route.
- Disposition missing or wrong: the attachment page explains the certified final disposition, and where the court never transmitted the disposition to GCIC at all, the correction process at Sec. 35-3-37(d) through (g) is the unblocking step.

QUALIFYING DISPOSITIONS include: the case closed without referral to the prosecuting attorney; dismissal after referral; two no-bills from the grand jury; all charged offences dismissed or nolle prossed; all charged offences reduced to a local ordinance violation; a conditional discharge under Sec. 16-13-2 or underage alcohol disposition under Sec. 3-3-23.1, completed; a drug, mental health or veterans court completed with dismissal or nolle prosee; acquittal of all charges (after the ten days the prosecuting attorney has under Sec. 35-3-37(h)(2)(E) to defeat restriction).

NOT QUALIFYING, EVEN THOUGH THE OUTCOME LOOKS FAVOURABLE (Sec. 35-3-37(i)): a dismissal or nolle prosee entered as part of a plea agreement that resulted in conviction on an offence arising from the same transaction - THE SINGLE MOST COMMON DISQUALIFIER, and it is not visible on a GCIC report; a dismissal because the prosecuting attorney was barred from introducing material evidence, or because the conduct was prosecuted in another jurisdiction, or for diplomatic or consular immunity; a PARTIAL acquittal, where some charges resulted in acquittal and some did not; an acquittal later shown to have resulted from jury tampering or judicial misconduct. If any of these may be

your case, stop and get help before sending anything.

WHO THE REQUEST GOES TO. The prosecuting attorney for the county of arrest - the Attorney General, a district attorney or a solicitor-general under Sec. 35-3-37(a)(5). Intake format varies by county: some offices publish their own intake form, and georgia.gov tells people to ask for the form provided by the prosecuting attorney's office. **WHERE A COUNTY OFFICE HAS ITS OWN FORM, THAT FORM GOVERNS**, and the written request in this packet is the covering request. Ask the office how it wants the request delivered before sending.

WHAT HAPPENS AFTER. The prosecuting attorney enters the restriction code in the CCH interface or forwards the approved paperwork to GCIC. GCIC notifies the arresting agency within 30 days, and the arresting agency restricts its own records within 30 days (Sec. 35-3-37(k)(1)). Your follow-up schedule: pull your criminal history again after those windows have run, and confirm the cycle shows as restricted.

WHAT RESTRICTION DOES NOT DO.

- It does NOT reach the clerk of court's file, which stays public until the separate sealing route.
- It does NOT reach jail and detention centre records until the separate jail request.
- It does NOT reach federal records, out-of-state records, or private background-check vendors and local agencies that already hold the data, which GBI expressly disclaims control over.
- It does NOT let you say the record does not exist. Nothing in Sec. 35-3-37 gives a person the right to deny a restricted arrest, and Sec. 35-3-37(u) says expressly that a restriction or sealing may be used to disqualify a person from employment or office in the same manner as a first offender discharge under Sec. 42-8-63.1, and does not supersede disclosure required by federal law.

WHERE TO GET HELP. If any stop condition on these pages is yours, the Judicial Council's Access to Justice page names four Georgia expungement desks: the Georgia Justice Project, the Cobb County Second Chance Desk, the Henry County Records Restriction Desk, and Middle Georgia Justice "The Desk".

Route: obligation:unit:GA:ga-nonconv-post2013:ga-nonconv-post2013-automatic |
obligation:unit:GA:ga-nonconv-post2013:ga-nonconv-post2013-request

WRITTEN REQUEST TO THE PROSECUTING ATTORNEY TO ENTER THE RESTRICTION

USE THIS REQUEST ONLY IF your Georgia criminal history does NOT already show the arrest cycle as restricted. If it does, nothing needs to be sent. WHERE THE COUNTY PROSECUTING ATTORNEY'S OFFICE PUBLISHES ITS OWN INTAKE FORM, THAT FORM GOVERNS and this request is the covering request that goes with it.

To: the prosecuting attorney for the county of arrest (the Attorney General, district attorney or solicitor-general under O.C.G.A. Sec. 35-3-37(a)(5))
Office name and postal or e-mail destination (you confirm both with that office before sending; intake format and destination vary by county):

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From: Maria-Alejandra O'Shaughnessy-Whitfield
Date of birth: 1968-12-31
Mailing address: 11884 Chattahoochee River Crossing Parkway, Apartment 14B, Savannah, Georgia 31419-2214
Telephone: (912) 555-0199 ext. 4417
Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

RE: REQUEST TO ENTER THE RECORD RESTRICTION REQUIRED BY O.C.G.A. Sec. 35-3-37(h)

1. I, Maria-Alejandra O'Shaughnessy-Whitfield, was arrested on or after July 1, 2013, and the arrest cycle identified below ended in a disposition for which O.C.G.A. Sec. 35-3-37(h) requires access to be restricted. My Georgia criminal history does not show the cycle as restricted, and I ask your office to enter the restriction in the CCH interface or forward the approved paperwork to the Georgia Crime Information Center.

2. The arrest cycle is identified as follows, from my own Georgia criminal history report and court paperwork:

County of arrest:

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Date of arrest:

.....

Arresting law enforcement agency:

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Offences I was arrested for, as the record states them:

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.....

How the case ended (the disposition), exactly as the court record states it:

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Date the case ended:

.....

Court that handled the case, and its case number:

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3. In my own words, what I am asking your office to do, and why this record matters to me now (these lines are yours alone; nothing on them is written for you):

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4. If the disposition is missing from or wrong on my criminal history, a certified final disposition from the clerk of the court that handled the case is attached, as the attachment page of this packet describes.

5. Under O.C.G.A. Sec. 35-3-37(k)(1), once the restriction is entered the Georgia Crime Information Center notifies the arresting agency within 30 days and the arresting agency restricts its own records within 30 days. I ask that the restriction be entered accordingly.

DATE SIGNATURE

(You sign and date this request personally. It is your own request, and nothing on this page is signed or dated for you. No statutory wet-signature or verification rule applies, and no notarization is required.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

Route: obligation:unit:GA:ga-nonconv-post2013:ga-nonconv-post2013-automatic |
obligation:unit:GA:ga-nonconv-post2013:ga-nonconv-post2013-request

ATTACHMENT: THE CERTIFIED FINAL DISPOSITION

USE THIS PAGE ONLY IF the disposition is missing from or wrong on your Georgia criminal history. If your report already shows the final qualifying disposition for every charge, no attachment is needed.

For: Maria-Alejandra O'Shaughnessy-Whitfield

WHAT TO ATTACH. A certified copy of the final disposition, obtained from the clerk of the court that handled the case. Ask the clerk for a certified copy; attach it to the written request. This packet does not collect, inspect or authenticate it - it is yours, obtained by you, attached by you.

IF THE COURT NEVER SENT THE DISPOSITION TO GCIC AT ALL. The prosecuting attorney cannot restrict a cycle whose disposition GCIC has never received. Where the court has not transmitted the disposition, the correction process at O.C.G.A. Sec. 35-3-37(d) through (g) is the unblocking step - and disputes about what the record should say are exactly where self-help stops. The four expungement desks named on the guidance page are the place to take a contested or ambiguous disposition.

Write here which court issued the certified disposition you are attaching, and the date it bears (from the document itself):

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Route: obligation:unit:GA:ga-nonconv-post2013:ga-nonconv-post2013-automatic |
obligation:unit:GA:ga-nonconv-post2013:ga-nonconv-post2013-request